

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

-----X
MARQUISE SIMMONS,

Plaintiff

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER JACK OROURKE
(shield# 28983), and POLICE OFFICER JOHN
DOE (shield# unknown),**

Defendants.

Index No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUMMONS

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Queens, New York
December 18, 2023



LOVELACE LAW, PLLC
By: Kawan A. Lovelace, Esq.
Attorney for Plaintiff
72-11 Austin Street, #303
Forest Hills, New York 11375
(718) 662-8265

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X

MARQUISE SIMMONS,

Plaintiff

Plaintiff,

Index No.

Verified Complaint

- against -

**THE CITY OF NEW YORK,
POLICE OFFICER JACK OROURKE
(shield# 28983), and POLICE OFFICER JOHN
DOE (shield# unknown),**

Defendants.

=====X

Plaintiff MARQUISE SIMMONS, by his attorneys LOVELACE LAW, PLLC, by KAWAN A. LOVELACE, ESQ., principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law, and the laws of the State of New York. On September 29, 2022, at approximately 12:08 p.m., Plaintiff Marquise Simmons, while lawfully in the vicinity of 204 Street and Webster Avenue, County of the Bronx, State of New York, was subject to an unlawful arrest, and detention by defendant Police Officers. Plaintiff was deprived of his constitutional, common law, and statutory rights when the individual Defendants unlawfully stopped, detained, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, the common law, and the laws of the State of New York.

PARTIES

2. At all times hereinafter mentioned, Plaintiff MARQUISE SIMMONS was a resident of New York County in the City and State of New York.
3. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it

is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

4. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT (“POLICE”), was and is an agency of Defendant CITY.
5. At all times hereinafter mentioned, Defendant POLICE OFFICER JACK OROURKE, Shield No. 28983 (P.O. OROURKE) was, and is, a police officer employed by Defendants.
6. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

STATEMENT OF FACTS

7. On September 29, 2022, at approximately 12:08 p.m., Plaintiff was in the vicinity of 204 Street and Webster Avenue, County of the Bronx, State of New York, when the Defendant Police Officers, including P.O. OROURKE, unlawfully detained and arrested Plaintiff without legal justification, and falsely accused Plaintiff of having committed the crime of Assault in the Third Degree, and other related offenses.
8. Plaintiff was sitting in the front passenger seat of a vehicle along with the driver of said vehicle. There were no other occupants in the vehicle.
9. While driving, the vehicle was pulled over at a vehicle checkpoint by Defendant Police Officers, including P.O. OROURKE, at the aforementioned location.
10. At no time did Plaintiff, or the driver of said vehicle, commit a VTL infraction or give the Defendants any reason to pull them over.
11. Defendant Officers approached both the driver’s and Plaintiff’s sides of the vehicle, respectively.
12. Defendant Officer asked Plaintiff for his identification.

13. Plaintiff asked Defendant Officer why he needed Plaintiff's identification since Plaintiff was not operating the motor vehicle and had not committed any VTL infractions.
14. Defendant Officer then opened the front passenger door, pulled Plaintiff out of the passenger seat, and threw Plaintiff to the ground next to the vehicle.
15. Plaintiff was then struck with closed fists numerous times about his head and body by two or more Defendant Officers.
16. Plaintiff crawled under the vehicle to escape the punches from Defendant Officers.
17. Plaintiff then requested that Emergency Medical Services (EMS) respond to the scene for his injuries.
18. Subsequent to the arrival of EMS, Plaintiff crawled out from under the vehicle, and was immediately placed in handcuffs and under arrest by Defendant Officers.
19. The driver of the vehicle that Plaintiff was in, was also handcuffed and placed under arrest.
20. At no time relevant herein did Plaintiff, nor the driver, commit a crime or violate the law in any way, nor did the Police Officers have an objective reason to accuse Plaintiff, or the driver, of committing a crime or violating the law in any way.
21. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff, or the driver, or from a location that was in either Party's possession, custody, or control.
22. Nevertheless, Plaintiff and the driver were unlawfully arrested and handcuffed by Defendant Officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.
23. Plaintiff was removed from the scene by EMS, in police custody, and taken to a hospital in Bronx County for medical attention.
24. Plaintiff requested to be taken to the emergency room, but instead, was taken to the psychiatric ward.
25. Plaintiff repeatedly told Defendant Officers that he did not want to go to the psychiatric ward and requested to be taken to the emergency room for his injuries.
26. Plaintiff was then held down by Defendant Officers and hospital staff, and injected with an unknown substance which rendered Plaintiff unconscious.

27. When Plaintiff regained consciousness, Plaintiff was handcuffed to a hospital bed, given treatment for his injuries, and then transported to the Precinct.
28. Plaintiff was searched, photographed, and fingerprinted at the Precinct and then transported to Central Booking.
29. While Plaintiff was in custody, the Defendant Police Officers provided the Bronx County District Attorney's Office with false, misleading and/or incomplete information that Plaintiff committed a crime.
30. Specifically, the Defendant Police Officers falsely stated to the Bronx County District Attorney's Office that Plaintiff assaulted a police officer, resisted arrest, and obstructed governmental administration.
31. Plaintiff appeared before a judge for arraignment.
32. During said arraignment on October 1, 2022, the Bronx District Attorney's Office offered Plaintiff an Adjournment in Contemplation of Dismissal to dispose of the matter, which Plaintiff accepted in order to be released from custody and go home.
33. Plaintiff was unlawfully detained for approximately forty-eight (48) hours.
34. On November 9, 2022, the criminal case for the driver was ordered to be dismissed and sealed by motion of the District Attorney.
35. On March 31, 2023, Plaintiff's case was dismissed and sealed pursuant to the orders stipulated by the Bronx County District Attorney's Office.
36. Some of the police officer Defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.
37. The unlawful assault, battery, and use of excessive force by the individually named Defendants caused Plaintiff to sustain physical, psychological, and emotional trauma.

PROCEDURAL POSTURE

38. On January 25, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

39. On February 1, 2023, Plaintiff filed an Order to Show Cause and Request for Judicial Intervention in Bronx County Supreme Court, Hon. Mitchell J. Danziger, under Index No. 801856/2023E, requesting permission to file a late notice of claim to include the causes of action: False Arrest and Excessive Force.
40. On February 27, 2023, the Defendant City stipulated to Plaintiff's request to file said late notice of claim, and on March 3, 2023, the Court executed and filed said So-Ordered Stipulation to file a late notice of claim.
41. More than thirty days have elapsed since service of said Notice of Claim, prior to the commencement of this action, and defendant CITY has failed to pay or adjust this claim.
42. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
43. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on September 1, 2023.
44. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.
45. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
46. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

FIRST CAUSE OF ACTION

Negligence

47. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
48. Defendants owed a duty of care to Plaintiff.
49. Defendant Officer's breached that duty of care by deliberately restraining and injuring Plaintiff.
50. As a direct and proximate result of such acts, Defendant officers deprived Plaintiff of his rights under the laws of the State of New York.

51. All of the foregoing occurred without any fault or provocation by Plaintiff.
52. Defendant officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
53. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
54. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION
Unlawful Stop, Question, and Search

55. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
56. The illegal approach, pursuit, stop and grab employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
57. The conduct of Defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
58. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
60. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

61. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
62. The individually named police officer Defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right

to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

63. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

64. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
65. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
66. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.
67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
68. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
69. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

70. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
71. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory

and common law rights as guaranteed by the laws and Constitution of the State of New York.

72. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.
73. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
75. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
76. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

77. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
78. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise Defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
79. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

80. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
81. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to

intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

82. Defendants failed to intervene to prevent the unlawful conduct described herein.
83. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, his property was damaged, and he was humiliated and subject to other physical constraints.
84. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
86. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
87. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Violation of Fourth And Fourteenth Amendment Rights: Denial of Right to Fair Trial/Due Process

88. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
89. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.
90. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.
91. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.
92. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

93. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.
94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
95. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
96. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to economic, emotional, and psychological injuries.

NINTH CAUSE OF ACTION
Malicious Prosecution

97. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.
98. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.
99. Defendants commenced and continued a criminal proceeding against Plaintiff.
100. There was actual malice and an absence of probable cause for the criminal proceedings against Plaintiff and for each of the charges for which they were prosecuted.
101. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned date.

TENTH CAUSE OF ACTION
Violation of Plaintiff's Fourth And Fourteenth Amendment Rights:
Excessive Force

102. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
103. The use of excessive force by Defendants by, amongst other things, yanking Plaintiff by the arm and torso, throwing Plaintiff to the ground, striking Plaintiff numerous times with closed fists about Plaintiff's head and body, placing handcuffs upon Plaintiff's wrists in an excessively and abusively tight manner, holding Plaintiff down and causing an unknown substance to be injected into Plaintiff's arm

rendering Plaintiff unconscious, and suffer other injuries, constituted objectively unreasonable physical seizures of Plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

104. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

ELEVENTH CAUSE OF ACTION

Assault

105. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
106. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.
107. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
108. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
109. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
110. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Battery

111. The Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.
112. Defendants, their agents, servants, and employees, acting within the scope of their employment, intentionally, willfully, and maliciously battered Plaintiff, when they,

in a hostile and/or offensive manner pulled Plaintiff from the front passenger side seat of the vehicle, threw Plaintiff to the ground and struck Plaintiff with closed fists about his head and body causing bruising, handcuffing Plaintiff in an excessively tight manner causing bruising, pain, and damage to Plaintiff's wrists, and by taking Plaintiff to the psychiatric ward of the hospital rather than the emergency room as Plaintiff requested, thus causing Plaintiff to be injected with an unknown substance which rendered Plaintiff unconscious, thereby brutally effecting an arrest of Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff, and caused such battery.

113. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
115. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
116. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRTEENTH CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

117. Plaintiff repeats, reiterates, and, re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
118. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:
 - i. freedom from unreasonable search and seizure of her person and property;
 - ii. freedom from arrest without probable cause;
 - iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention Plaintiff was aware and did not consent;
 - iv. freedom from the lodging of false charges against him by police officers and prosecutors, including on information and belief, by some or all of the individual Defendants; and
 - v. freedom from deprivation of liberty without due process of law.
119. As a direct and proximate result of Defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff

suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

120. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

121. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

122. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

123. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Marquise Simmons demands judgment against the Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: Queens, New York
December 18, 2023

Yours, etc.,
LOVELACE LAW, PLLC


By: Kawan A. Lovelace, Esq.
Attorney for Plaintiff
72-11 Austin Street, #303
Forest Hills, NY 11375
(718) 662-8265

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX****Index No.**

Purchased_____

MARQUISE SIMMONS,**VERIFICATION**

Plaintiff

-against-

**THE CITY OF NEW YORK,
POLICE OFFICER JACK OROURKE
(shield# 28983), and POLICE OFFICER JOHN
DOE (shield# unknown),**

Defendants.

I, **KAWAN A. LOVELACE**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Queens, NY
December 18, 2023


KAWAN A. LOVELACE, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

MARQUISE SIMMONS,

Plaintiff

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**THE CITY OF NEW YORK,
POLICE OFFICER JACK OROURKE
(shield# 28983), and POLICE OFFICER JOHN
DOE (shield# unknown),**

Defendants.

SUMMONS & COMPLAINT

**Law Office of Kawan A. Lovelace
Attorney for Plaintiff
72-11 Austin Street, #303
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(718) 662-8265**

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007**